

Court No. - 39

Case :- WRIT - C No. - 48052 of 2014

Petitioner :- Natthoram

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Krishna Dev Mishra,P.K. Pandey

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Heard Sri Krishna Dev Mishra, learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for the respondent-corporation.

Learned counsel for the petitioner submits that on account of severe financial crises, he could not pay the regular electricity bills. Now, he is ready and willing to pay the entire demanded amount in installments.

Clause 6.14 of the Electricity Supply Code, 2005, empowers the Executive Engineer to extend the facility of installment to those consumers, who are found to be in financial distress.

Considering the facts and circumstances, the writ petition stands disposed of with liberty to the petitioner to approach the Executive Engineer along with prayer in view of clause 6.14 of the Electricity Supply Code, 2005, with afresh application/representation. In case, such application is made, the Executive Engineer concerned shall pass a reasoned and speaking order, expeditiously, in accordance with law.

Order Date :- 8.9.2014

Ashok Kr.